

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Probate Notes

**2025PRTR039181: IN RE THE LEONE M RIECK REVOCABLE TRUST AGREEMENT
DTD FEBRUARY 24, 2017, AS AMENDED ON SEPTEMBER 28, 2018**

06/25/2026 in Department J6

Motion to Suspend Trustee and Appoint Interim Trustee

The Court intends to grant the petition to suspend the trustee and to appoint an interim trustee. The Court will appoint Debra Rieck as the interim successor trustee. Respondent John Swanson will be ordered to turn over all trust documents and assets to the interim trustee.

The Court notes that the untimely opposition to the petition filed on 4/28/26 by Attorneys Nadeen Farra and Madison Spach, Jr. contains citations to cases that do not exist or are unjustified. For example,

- Page 4: “In *Schwartz v. Labow*, the court found that a court may remove a trustee only on the grounds specified in the Probate Code. *Schwartz v. Labow* (2008) 164 Cal.App.4th 417, 427.” Page 427 of *Schwartz* does not contain this finding. In fact, page 427 talks about the probate court’s “wide, express powers” “to make any orders and take any other action necessary or proper to dispose of the matters presented” by a § 17200 petition. While page 427 does discuss the court’s “express” powers under § 15642 to remove or suspend a trustee, the *Schwartz* court was not indicating that the probate court “may remove a trustee only on the grounds specified in the Probate Code.” Instead, the court was saying that the probate court has inherent power to prevent or rectify abuses of a trustee’s powers.
- Page 4: “Mere hostility, disagreement, or lack of confidence does not justify removal absent evidence that such conflict materially impairs trust. *Lefkowitz v. Superior Court* (2019) 32 Cal.App.5th 117, 128; *Estate of Brown* (1956) 143 Cal.App.2d 561, 564.” On Westlaw, the citation to the *Lefkowitz* case does not exist. The citation 32 Cal.App.5th 114 brings up a case called *Sunrise Financial, LLC v. Superior Court*. The citation to the *Brown* case also does not exist. 143 Cal.App.2d 561 brings up a case called *Phillips & Edwards Elec. Corp. v. Shintaffer* (1956) 143 Cal.App.2d 561, which does not involve a trust.
- Page 5: “Temporary suspension prior to adjudication is appropriate only where there is a demonstrated and immediate threat to trust assets, not where harm is speculative or hypothetical. (*Estate of Gilmaker* (1962) 57 Ca1.2d 627, 633.)” Page 633 of *Gilmaker* does not support this assertion.
- Pages 5-6: “Courts are required to consider whether removal or suspension would itself be detrimental to the trust, and should not grant such relief where it would cause greater harm than it prevents. (*Estate of*

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Bixby (1961) 55 Ca1.2d 819, 826.)” Page 826 of *Bixby* does not support the assertion.

Ms. Spach, Jr., and Nadeen Farra are to serve and file declarations explaining the foregoing citation and quotes.